

thanked the members for the attention with which they had listened to his paper.

The Resolution was then put by the President, and was carried.

WILLIAM GOULDSTONE.

CENTRAL CRIMINAL COURT, SEPT. 14, 1883.

(Before MR. JUSTICE DAY.)

[*Times*, Sept. 15, 1883.]

William Gouldstone, 26, blacksmith, was placed upon his trial upon an indictment charging him with the wilful murder of his five children—Charles, Herbert, and Frederick Gouldstone, and two male infants, on August 8.

The prisoner pleaded "Not Guilty."

Mr. Poland and Mr. Montagu Williams conducted the prosecution for the Crown; Mr. Grain and Mr. Elliot were counsel for the defence.

The prisoner was first tried upon the indictment charging him with the wilful murder of his eldest child, Charles Gouldstone.

Mr. Poland, in opening the case, said the prisoner, William Gouldstone, was charged in this indictment with the wilful murder of Charles Gouldstone, his son. The prisoner had been for five years in the service of a firm in Lower Thames street. He had been living for ten weeks at Walthamstow with his wife and three children—the eldest, the subject of the indictment, Charles, being three-and-a-half years, Herbert two-and-a-half years, and Frederick 16 months old. On the 1st August his wife, at the place where they were then living, was confined of twins. The prisoner was by all accounts a sober, hard-working man, and had been maintaining his wife and children by his daily labour. There was no doubt, receiving as he did about 25s. per week, that he regretted that his wife was confined of twins so as to add so seriously, as he thought, to the number of his children. Up to that time, the learned counsel repeated, the prisoner had been sober and industrious. On the day of the confinement and on the following night the landlady, for the first time, saw that he was somewhat the worse for drink. As he (Mr. Poland) gathered from the evidence, the prisoner continued at his work until the Friday before Bank Holiday, Monday, August 6th. On the Monday following—Bank Holiday—the prisoner was, of course, not at work, neither did he go to his employment on Tuesday, 7th, or Wednesday, 8th August, although he did not remain at home on those days. On the 8th August he came home at half-past 5 in the evening, his usual time for returning being half-past 7. When he came home, the two eldest children were playing in the kitchen, and in the bedroom on the same floor was his wife, the third child Frederick, and the two babies, which were being suckled by the mother. Mrs. Hamilton, a lodger who had kindly attended Mrs. Gouldstone during her confinement, was also in the room washing the children. The jury would have evidence that the prisoner, who was then apparently sober, took from the bedroom into the kitchen the child Frederick, and they would find that after going backwards and forwards into the room, he went into the kitchen, moved the perambulator, and placed a chair near the cistern. It would be proved beyond all question that the prisoner drowned the three eldest children in the cistern, and a piece of cord was subsequently found tied round the neck of one. Having thus destroyed the lives of these three children, the prisoner went into the bedroom where his wife was. Mrs. Hamilton, thinking he wanted to speak privately to his wife, left the room, leaving him alone with his wife and the two babies. The prisoner locked the door, and Mrs. Hamilton then heard screams of "murder" coming from Mrs. Gouldstone, who called out that the prisoner was murdering her children. Mrs. Hamilton, in company with the landlady of the house, endeavoured to

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force the room door open, but they were unable to do so. The prisoner soon afterwards opened the door and said, "I have killed the children, and I am happy now," and then he said to his wife "Your other three children are in the cistern." Mrs. Hamilton found that, although the two babies were not dead, there had been inflicted upon them very serious injuries with a hammer which was found lying in the room. The infants' skulls had been fractured, and on the following night they both died. Upon the prisoner making this statement Mrs. Hamilton went into the kitchen, and there she found lying dead upon the floor the three elder children, the bodies being saturated with water; and evidently their death had been caused by drowning in the cistern. The act must have been done with great deliberation, as only 14 inches of water was in the cistern at the time. The prisoner said further to his wife, "All the children are dead now. I shall be hung, and you will be single. You wished them dead, and now they are." The police were sent for, and the wife, knowing that he was to be taken away, kissed him, and asked him what money he had about him. He gave her what he had, and he was then taken to the police station. When the police came they found him with his coat off and with his shirt sleeves tucked up. The prisoner said, "Good evening, policeman. I have done it. Now I am happy, and ready for the rope." He repeated the statement to his wife that he had killed the children and that he should be hanged. While on the way to the police station he said to the officer who had him in charge, "When I took my money last week (referring to the previous Friday when he was paid) I thought of buying a revolver to do it with, but I altered my mind, as I thought it would make too much noise. I had a hard job with the two biggest, but the other little — I soon settled him. I thought it was getting too hot with five kids within three-and-a-half years, and I thought it was time to put a stop to it." When charged, the prisoner replied, "That is right; I am happy now. I did it like a man." After he had been placed in the cell, the prisoner spoke to the constable who was placed in charge of him, and said, "I had an extra drop of drink to-day to accomplish the job. Five of them have gone to glory, and a good job too." He added that he was sorry for his wife, but the children would be better off in heaven, if there was such a place, than leaving them to the mercy of the world. The prisoner further stated that he wished he had killed the little ones out of the way; he did not know whether he hit them once or twice; and he had had it preying on his mind for some time previously. Up to the time of the occurrence the prisoner was pursuing his ordinary calling, and whether he had been drinking at the time the prosecution were not able to prove, but there was his own statement to that effect. The learned counsel pointed out that the prisoner, according to his own statement, had considered the matter beforehand, and whether he should buy a revolver to commit the act, and he seemed at length to have come to the terrible determination to take the lives of his children, thinking that, instead of having the burden of maintaining them and leaving them to struggle in the world, he would take their lives. He preferred to take that course, knowing thoroughly well what he was about, and that, by the law of England, it was a crime to take human life, for he said, "I shall be hung, and I am ready for the rope." This expression indicated that he was conscious at the time that he was committing a crime against the law of the land. If he knew the nature and quality of the act he was committing, and that it was a crime, he was responsible to the law for that act.

Mr. Grain, in opening the case for the defence, submitted that the prisoner, according to the evidence of the prosecution alone, was not in a state of mind to know the nature of the act he was committing, for it otherwise would have been impossible that the kind and affectionate father, the good husband, the well-conducted and meritorious man, in the short space of time alleged, should have murdered in so barbarous a manner his five children, three of whom had been playing at his knee, the two infants being suckled at their mother's breast. He (Mr. Grain) should call before them witness after witness, who would prove that in both branches of the prisoner's family there was un-

doubtedly hereditary insanity. The accused's mother at the present time was a lunatic, and although she was not confined in an asylum, yet she was undoubtedly insane, and at the time of his birth she was not in her right mind. His aunt on his mother's side was also not in a right state of mind. The insanity was not confined to the maternal side alone. He should be able to prove that on the paternal side there was also insanity in the family. His second cousin on his father's side died a lunatic, and other members of the family on the same side had been of unsound mind. He should call Dr. Savage, the principal physician at Bethlem Hospital, and he would say that having examined the prisoner, and heard the evidence of insanity in both branches of the family, he was of opinion that he had had a hereditary tendency to a weak mind. He submitted that the prisoner's mind became unhinged before he committed the act, and that unless it had become so it would have been impossible for him to have committed a deed of so awful a character.

A number of witnesses were then called in support of the defence.

Thomas Gouldstone, examined by Mr. Grain for the defence, said—I am the father of the prisoner at the bar. His mother is alive, and is very bad in her mind now, and has been for many years. A woman has to be employed to look after her. Once she attempted to strangle herself, and once I took a knife away from her. About eight weeks ago she threatened to take her life. When the prisoner was born she was in a bad state of mind. My wife's sister is also not in her right mind. William Gouldstone, a second cousin of mine, died in a madhouse, and my father's sister wore a strait jacket for some years.

Cross-examined by Mr. Poland.—All my children have been quite right except the prisoner. My wife has never been in an asylum. She is a sober woman. When I saw my son about eight weeks ago he seemed queer.

Robert Gouldstone, the eldest son of the last witness, proved that his mother had threatened to make an end of herself, and the family had had to look after her and keep knives out of her way. The prisoner was ruptured some six or seven years ago, and about this time frequently complained of pains in his head.

Emily Gouldstone, sister of the prisoner, deposed that through troubles in business her mother had several times attempted to commit suicide. She last saw the prisoner about two months since at her sister's house.

William Graves, foreman at the Falkirk Ironworks, Thames street, where the prisoner was employed, deposed that he had known him since childhood. He had always known him to live happily with his wife and family. On the 2nd of August, after his wife's confinement, witness noticed a change in his manner, and spoke to him about it. The accused complained of pains in the head. Witness paid him his wages the next day, and gave him a customary present of 10s.

A number of fellow workmen also gave evidence on the prisoner's behalf. On several occasions the prisoner told a man named Cakebread that he would throw himself under a train if he thought he would be killed instantaneously and without pain, and at another time he said that he would throw himself down the lift if he could do so without torture. He also stated to other men that he wished he was dead, and he complained of pains in his head arising from the rupture. He also expressed a wish that someone would knock him on the head. He bore the character of a quiet and steady man, and if anything was rather morose.

Mr. Kennard, one of the prisoner's employers, stated that he knew nothing of him personally, but the general feeling among his fellow workmen was that he was insane.

Charles Gouldstone, a cousin of the prisoner's father, deposed that his son (the prisoner's second cousin) had been confined in a lunatic asylum for 16 months from 1880.

Dr. Sunderland, a medical man practising at Thaxted, in Essex, spoke to having attended the prisoner's mother, who was of unsound mind, for eight years. The form of insanity she was suffering from was despondency. He

also attended Mrs. Andrews, her sister, who suffered from the same malady. Replying to Mr. Poland, witness said that neither the mother nor her sister had been certified as insane.

Dr. Savage, the principal physician of the Bethlem Hospital, deposed that he had examined the prisoner, and from the examination alone he considered him rather weak in his mind, as was evidenced by slowness of appreciation of questions concerning the crime of which he was accused. When speaking about it he seemed not to appreciate in any way the gravity of the charge. Beyond that, from his personal examination, witness could say nothing. He had heard the evidence of the prisoner being a fond husband and father and a quiet steady workman, and details of the case, and he should think that his mind was unsound at the time the act was committed. He had heard his fellow workmen describe his wishing to be dead, and of his wanting to fall down the lift, and witness was of opinion that such symptoms were frequently present with persons of unsound mind.

The witness was about to be asked what conclusion he arrived at after hearing the evidence of insanity on both the paternal and maternal side of the family, when

Mr. Justice Day said it seemed to him that that was the question the jury had to decide. A doctor was entitled to give his medical evidence, but not to draw a conclusion which the jury had to draw.

Dr. Savage, in answer to further questions, said the insanity on the mother's side being proved, he thought there would be a great tendency for the prisoner to become insane, and that if insanity, even in a remote degree, was proved on the male side the liability to insanity in the offspring would be increased to a considerable extent. At Bethlem the last patient who died without being removed to Broadmoor, was a woman who had killed her whole family.

Replying to Mr. Poland, witness said he examined the prisoner on Thursday for between a quarter and half an hour. He was then called by the prisoner's solicitor, and he knew he had to examine him as to the state of his mind. From his conversation alone there was nothing to show that he was otherwise than a sane man. From what witness saw of him yesterday he would not certify the prisoner to be a lunatic, and he would say that he was not actively suffering from any form of mental disease that he knew of. He could not, therefore, certify that he was a lunatic. His conversation with witness was that of a rational man, and he should say the prisoner knew that the penalty awarded by law for the crime of murder was death. When he said he thought the prisoner was of unsound mind at the time of the commission of the act he formed the opinion from what he heard in court and from his examination of him. He thought he knew the penalty of what he was doing at the time, and that he had killed the children knowing that the penalty was death.

This concluded the evidence for the defence.

Mr. Justice Day then proceeded to sum up on the whole case. The prisoner, he said, was indicted for the wilful murder of his five children, and that he killed them was beyond all question. The question for the jury to determine was whether he killed them in such circumstances as would amount to the crime of wilful murder. The killing of a human being was presumptive murder; but the circumstances in which it took place might show that it did not amount to that crime, but that it amounted merely to manslaughter, justifiable homicide, or homicide by misadventure, or the act of a not reasonable being. The only question for the jury was whether this was the act of a reasonable being in the sense he would explain to them. The matter of law was one unquestionably for him, and the jury were bound to take his instructions with regard to the law, in doing which they would be incurring no responsibility upon themselves. He told them, as a matter of law, that if the prisoner at the time he killed the children knew the nature and quality of the act he was committing and knew that he was doing wrong, then he was guilty of wilful murder. The nature and quality of the act meant that the

man knew what it was that he was doing—that was to say, that he knew he was killing a fellow creature. He repeated that if a man killed a fellow creature knowing at the time that he was doing wrong then he was guilty of wilful murder. The only question, therefore, for them to determine was whether the prisoner knew the nature and quality of the act he was committing, and whether he knew it was wrong. The jury were bound to give their verdict according to the evidence, and to administer justice according to law. The circumstances were very sad, and a painful duty rested on the jury and all concerned in the trial. However painful that duty was they must not shrink from the performance of their duties. The only defence, and the one which had been set up on behalf of the prisoner with the utmost skill, discreteness, and ability by his learned counsel, Mr. Grain, was that the accused at the time he committed the act was of unsound mind, and therefore not responsible for his actions. His Lordship then carefully reviewed the evidence which had been given on the part of the defence in order to prove insanity, and remarked that previous to the 8th of August no one would have said the prisoner was of unsound mind, and referring to the statement made by the accused, he observed that it was difficult to say that at the time he did the deed he did not know what he was doing. He had had handed to him by the learned counsel for the prosecution, an Act of Parliament passed towards the end of last month—of the existence of which he was not previously aware, as no notice had been given to him—which might affect the form of their verdict. The former and logical law was simply this:—Wilful murder involved malice aforethought, and a person of unsound mind was incapable of forming an intention or malice aforethought, and therefore incapable of murder. In such circumstances a jury found a person “Not Guilty on the ground of insanity.” The law, however, had been altered, and if the jury found that the prisoner was insane at the time he committed the act they would have to return a special verdict that he committed the act, but was insane at the time. If, on the other hand, they found that he knew the nature and quality of the act when he killed his children, and that he was not of unsound mind, they must find him guilty, and the new Act would not affect that verdict.

The jury retired to consider their verdict, and, after an absence of about a quarter of an hour, returned into Court, finding the prisoner *Guilty*.

Being asked in the usual course whether he had anything to say why sentence of death should not be passed upon him, the prisoner replied in the negative.

Silence was then formally proclaimed, and

Mr. Justice Day, having assumed the black cap, proceeded to pass sentence of death.

The prisoner, who had preserved a calm and undisturbed demeanour throughout the trial, was then removed.

TO THE EDITOR OF *The Times*.

SIR,—I feel it my duty to write shortly about the case of William Gouldstone, the murderer of his five children. Justice demands further investigation of the case. The facts are plain. A young man of 26, who had been a well-behaved and industrious man, odd in some of his ways, is seized with fear of impending ruin to himself and family, and kills them to send them to heaven. The act is an insane one, and I think little more should have been needed to prove it to be such, but it was proved that his mother and aunt both suffered from precisely similar fears of ruin, and though the Judge ridiculed the importance of a second cousin on his father's side being insane, I would repeat emphatically that there being an insane taint which could have been shown to exist in several second cousins and others on the father's side, was of great importance. A great deal was made of my statement that I could not certify to his insanity from my personal interview of 15 to 30 minutes. It does not follow that the man may not have been insane at the time the act was committed.